

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

ONE BANANA NORTH AMERICA CORP., *Complainant*

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC,
Respondents.

DOCKET NO. 22-03

Served: April 26, 2022

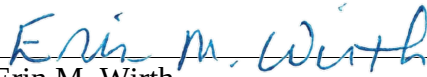
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER ENTERING CONFIDENTIALITY STIPULATION AND PROTECTIVE ORDER

On April 25, 2022, the parties filed a joint motion requesting entry of a confidentiality stipulation and protective order. The parties attached, as Attachment A, the proposed confidentiality agreement and proposed protective order. The parties indicate that they have “jointly drafted the attached and agree to be bound by all of the terms contained therein.” Motion at 1.

The initial order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 4. The confidentiality stipulation is reasonable, however, the parties should note that after the initial decision is issued, the undersigned has no authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

The parties have established good cause to enter the confidentiality agreement and protective order. Accordingly, the joint motion is **GRANTED**, and it is hereby **ORDERED** that the confidentiality agreement and protective order shall be entered as an order in this proceeding.


Erin M. Wirth
Chief Administrative Law Judge